

**Superior Court of the State of California  
County of Orange**

**TENTATIVE RULINGS FOR DEPARTMENT C32  
JUDGE LEE L. GABRIEL, Dept. C32**

**Date: June 23, 2026**

**APPEARANCES:** Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/mediarelations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at <https://www.occourts.org/mediarelations/aci.html>.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

| #  | Case Name                                                                                                      | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
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| 1. | <b>PRIMARY CARE ASSOCIATES OF CALIFORNIA, INC. VS. BZ HEALTH NETWORK OF CALIFORNIA, INC.<br/>2025-01451241</b> | <b>MOTION TO APPEAR PRO HAC VICE</b><br><br>The applications of attorney Ricardo A. Acre to appear pro hac vice as counsel for Defendants BZ Health Network of California, Inc. and BZ Health of California in this matter is hereby GRANTED pursuant to California Rules of Court, rule 9.40.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 2. | <b>KOICK, INC. VS. EPLEX, INC.<br/>2025-01491949</b>                                                           | <b>MOTION TO BE RELIEVED AS COUNSEL OF RECORD</b><br><br>The motion of attorneys Samuel Yu and Daniel Yu and law firm Kahana & Feld LLP to be relieved as counsel for defendant Sunhwa Lee is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.)<br><br>Attorneys will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client.<br><br>Moving attorney to give notice.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 3. | <b>GUNN VS. GREEN MEADOWS HOME HEALTH CARE, INC.<br/>2023-01370855</b>                                         | <b>1. MOTION FOR TERMINATING SANCTIONS</b><br><br>Defendant's Motion for Terminating Sanctions is CONTINUED to 7/14/26. Plaintiff's counsel Dawn Smith is ordered to appear <b>in person</b> at the hearing.<br><br>On 11/25/25, the Court found that Plaintiff Lucia Gunn had failed to cooperate with Defendant's deposition notice. Plaintiff had submitted a declaration dated 6/12/25 purportedly signed by Ms. Gunn which stated she was vocal and able to talk and make personal and legal decisions. Then, Plaintiff opposed the motion to compel deposition on grounds she was unable to communicate. Plaintiff's counsel now seeks to withdraw based in part on Plaintiff's inability to communicate.<br><br>The 11/25/25 order required the parties to meet and confer to determine whether Plaintiff's deposition could be completed despite her medical condition. On 12/9/25, the Court found Plaintiff's medical declaration stated Plaintiff was unable to communicate, comprehend or manage her legal affairs. The Court awarded monetary sanctions for Plaintiff's failure to fully comply with its prior order to meet and confer. Plaintiff's counsel did not move for appointment of a legal guardian for the disabled Plaintiff.<br><br>The Court is contemplating sanctions including but not limited to monetary sanctions against Plaintiff's counsel and issue or terminating sanctions for Plaintiff's conduct, including (1) presenting a false declaration to the Court, (2) failing to adequately meet and confer regarding the issue of Plaintiff's competence to testify, and (3) failing to promptly seek appointment of a guardian or |

conservator to prosecute this action when Plaintiff's counsel learned Plaintiff was unable to participate.

The Court is also considering reporting Plaintiff's counsel Dawn Smith to the State Bar of California for possible violations of ethical rules including but not limited to violations of Rules of Professional Conduct 1.1 (Competence), 1.2 (Scope of Representation), 1.3 (Diligence), 1.4 (Communication with Clients), 1.16 (Declining or Terminating Representation) and 3.3 (Candor Toward the Tribunal).

Plaintiff's counsel is ordered to file a supplemental declaration, no later than 7/7/26, addressing the Court's concerns, including the following issues:

1. Did Plaintiff's counsel confirm that Plaintiff Lucia Gunn was able to communicate and competent to sue before filing this lawsuit?
2. When did Plaintiff's counsel first learn that Plaintiff Lucia Gunn was unable to communicate?
3. Did Plaintiff's counsel confirm that Lucia Gunn understood and executed the June 2025 declaration before submitting it to the Court?
4. Why has Plaintiff's counsel not filed an application to appoint a guardian or other legal representative to prosecute this action on Plaintiff's behalf?
5. Why did Plaintiff's counsel fail to comply with the Court's 11/25/25 and 12/9/25 orders including engaging in meet and confer attempts and filing a supplemental brief.

If Plaintiff's counsel believes they are unable to answer any of the foregoing questions based on attorney-client privilege, counsel shall promptly submit a request for in-camera review of specific evidence that counsel asserts is privileged. However, the Court expects Plaintiff's counsel Ms. Smith to **personally appear** at the hearing and be prepared to address each of the aforementioned issues in camera if necessary.

## **2. MOTION TO BE RELIEVED AS COUNSEL OF RECORD**

The motion of attorney Dawn M. Smith to withdraw as attorney of record for Plaintiff Lucia Gunn is CONTINUED to 7/14/26. (Code Civ. Proc. § 284, CRC 3.1362.)

The supporting declaration states the client was personally served and a proof of service will be filed. However, as of five days before the hearing, no proof of service has been filed. Moreover, the declaration does not state whether personal service was effected on Plaintiff, who is apparently unable to communicate, or Plaintiff's husband, who was the main point of contact.

Moreover, Defendant has opposed the motion on grounds including undue delay and prejudice to Defendant. Plaintiff's counsel has not filed a timely reply brief.

Plaintiff's counsel is ordered to file a proof of service on the client and a reply to Defendant's opposition no later than 7/7/26.

### **3. MOTION FOR LEAVE TO FILE AMENDED COMPLAINT**

Plaintiff's Motion to Amend Complaint is GRANTED.

Code of Civil Procedure section 473(a)(1) states, "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

"There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding." (*Sullivan v. City of Sacramento* (1987) 190 Cal.App.3d 1070, 1081.)

Plaintiff seeks leave to amend to correct a typographical error regarding Plaintiff's age. Plaintiff incorrectly alleged at paragraph 95 of the Complaint that Plaintiff was 82 years old at the time of Defendants' conduct, when in fact Plaintiff was approximately 57 at the time of the events in the Complaint. Paragraph 4 of the Complaint stated Plaintiff was 59 years old. Plaintiff seeks leave to correct her age in paragraph 95.

Defendant contends it has suffered prejudice from litigating Plaintiff's elder abuse allegations, which are inapplicable given Plaintiff's true age. Defendant also contends Plaintiff unduly delayed in making the amendment.

Trial is set for 7/23/26.

Given that Defendant is already aware of the facts underlying the amendment, i.e. Plaintiff's true age, Defendant has failed to demonstrate prejudice from the amendment because the amendment will not substantially change any issues for trial. Therefore, the motion is granted. Plaintiff shall file and serve the proposed amended complaint within three court days.

#### 4. MOTION TO EXCLUDE EXPERTS

Defendant's Motion to Exclude Expert Witnesses is CONTINUED to 7/14/26.

Defendant seeks to exclude Plaintiff's expert witnesses from testifying at trial because Plaintiff has failed to cooperate with the experts' depositions.

Defendant's counsel declares that Plaintiff filed expert declarations of Irina Lewis, RN, and Fadi Saba, M.D., in opposition to summary judgment. Plaintiff identified those experts as well as Lisa Contreras, RN, in her expert designation served on 5/22/25.

Defendant contacted Plaintiff's counsel multiple times and noticed the depositions of Plaintiff's experts, but Plaintiff's counsel did not cooperate or present the experts for deposition. (Jackson Decl., ¶¶ 4-9.) The day before the noticed depositions on 11/5/25, Plaintiff's counsel stated the depositions would need to be rescheduled, but Plaintiff's counsel did not respond to Defendant's request for alternate dates. (¶¶ 10-11.) Defendant's counsel declares they cannot adequately prepare for trial without taking Plaintiff's expert depositions. (¶ 16.)

Plaintiff filed an untimely opposition on 6/9/26, stating that after trial was continued following filing of the motion, they have offered expert deposition dates and Defendant has ample time to depose Plaintiff's experts before the expert discovery cutoff. Plaintiff's counsel declares they have proposed dates for the expert depositions.

The expert witness discovery cutoff is 15 days before the date initially set for trial. (Code Civ. Proc. § 2024.030.) On 1/14/26, the Court continued trial to 7/23/26 due to the Court's unavailability. The 1/14/26 order did not state the expert discovery cutoff was extended.

Defendant cites *Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202, 1214, which holds:

"Misuse of the discovery process may result in the imposition of a variety of sanctions. These include payment of costs, sanctions barring the introduction of certain evidence, sanctions deeming that certain issues are determined against the offending party, and sanctions terminating an action in favor of the aggrieved party. (Code Civ. Proc., §§ 2023.020, 2023.030.) Misuse of the discovery process includes failing to respond or submit to authorized discovery, providing evasive discovery responses, disobeying a court order to provide discovery, unsuccessfully making or opposing discovery motions without substantial justification, and failing to meet and confer in good faith to resolve a discovery dispute when required by statute to do so. (Code Civ. Proc., § 2023.010, subds.

(d)-(i).) The court may impose sanctions ‘[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title....’ (Code Civ. Proc., § 2023.030.)”

Quoted portions of *Karlsson, supra*, 140 Cal.App.4th at 1214-1217 cited in Defendant’s brief at pp. 8-9 are not found in the cited portion of the *Karlsson* decision. The Court is unable to find the quoted language in a search of published California opinions. Defendant’s counsel shall be prepared to explain this discrepancy at the hearing including whether the mistake was the result of using generative A.I.

Nonetheless, California law is clear that it is within the Court’s discretion to exclude Plaintiff’s experts at trial based on Plaintiff’s failure to produce them for deposition. (See Code Civ. Proc. §§ 2023.010, 2023.030.) For instance, *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992 (cleaned up), holds, “The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should attempt to tailor the sanction to the harm caused by the withheld discovery. The trial court cannot impose sanctions for misuse of the discovery process as a punishment. The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.”

It appears possible for Defendant to complete the expert witness depositions in advance of trial. However, Defendant is likely entitled to sanctions for Plaintiff’s counsel’s extensive delay and failure to cooperate. The parties shall diligently attempt to complete the expert depositions and shall submit supplemental briefs, not to exceed five pages, regarding (1) the status of the expert depositions and (2) whether and in what amount Plaintiff’s counsel should be sanctioned for failure to cooperate in expert depositions. Defendant’s supplemental brief shall be filed and electronically served on 7/1/26 and Plaintiff’s supplemental brief is due on 7/7/26.

If Plaintiff does not exercise extreme diligence in producing the expert witnesses, the Court intends to both exclude the expert witnesses and award monetary sanctions against Plaintiff’s counsel.

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| <p><b>4.</b></p> | <p><b>KATZ VS. COLLECTIVE SOCIETY CORP.</b><br/><b>2025-01526146</b></p> | <p><b>MOTION TO STRIKE ANSWER</b></p> <p>The motion of plaintiffs Ilam and Zarnie Katz move for an order striking the defendants’ unverified answer is GRANTED with 30 days’ leave to amend.</p> <p>Plaintiffs Ilam and Zarnie Katz move for an order striking the unverified answer of defendants Collective Society Corp., Brian Foley, and Emma Bergeron. Defendants oppose the motion.</p> <p>Plaintiffs contend that, under Code Civ. Proc. § 446, defendants were required to file a verified answer because they filed a verified complaint. In fact, defendants filed an unverified general denial. (See ROA 14.)</p> <p>Defendants respond by contending only one of the two co-plaintiffs verified the complaint and that the other co-plaintiff should provide a verification before they are required to file a verified answer.</p> <p>Contrary to the objections raised by defendants, if there is more than one plaintiff, verification by one of them is sufficient. (<i>Clairborne v. Castle</i> (1893) 98 Cal. 30. See also <i>Patterson v. Ely</i> (1861) 19 Cal.28.) Likewise, verification of an answer by one defendant is sufficient. (<i>Butterfield v. Graves</i> (1902) 138 Cal.155, 158.)</p> <p>Thus, plaintiffs’ complaint was properly verified with the verification of plaintiff Zarnie Katz. And when a complaint is verified, the answer also must be verified, generally. (<i>French v. Smith Booth Usher Co.</i> (1942) 56 Cal.App.2d 23.)</p> <p>In addition, if the complaint is verified, use of a general denial is not permitted; rather, the denials must be specific. If the complaint is verified and defendant answers with a general denial, the answer may be disregarded and all material allegations in the complaint taken as true. (Code Civ. Proc. § 431.20(a). <i>Pico v. Colimas</i> (1867) 32 Cal. 578, 580.) This is true even if the answer itself is verified. (<i>Dewey v. Bowman</i> (1857) 8 Cal. 145 (general denial does not put in issue facts alleged in verified complaint), overruled on other grounds in <i>Gagliardo v. Hoberlon</i> (1861) 18 Cal. 394.)</p> |
| <p><b>5.</b></p> | <p><b>SADAT VS. NGUYEN</b><br/><b>2024-01444497</b></p>                  | <p><b>MOTION FOR ORDEER TO STAY PROCEEDINGS</b></p> <p>Defendant Olivia Nguyen’s Motion to Order Parties to Mediate Claims and Stay Proceedings is GRANTED.</p> <p>This action arises from alleged breach of a residential lease and fraudulent statements regarding habitability of the residence.</p> <p>Defendant seeks an order compelling the parties to attend mediation pursuant to the 8/4/22 lease agreement. Paragraph 35 of the agreement states in part, “Landlord and Tenant agree to mediate any</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

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|    |                                              | <p>dispute or claim arising between them out of this Agreement, or any resulting transaction, before resorting to court action.” (Ex. 1, p. 5.)</p> <p>Agreements to attend nonbinding mediation prior to filing suit are generally enforceable in California. (See, e.g., <i>The McCaffrey Group, Inc. v. Superior Court</i> (2014) 224 Cal.App.4th 1330, 1349-1351; <i>Bowers v. Raymond J. Lucia Companies, Inc.</i> (2012) 206 Cal.App.4th 724, 733.)</p> <p>Here, Plaintiff’s complaint arises out of the subject lease agreement which requires the parties to attend mediation before resorting to litigation. Plaintiff has not opposed the motion.</p> <p>Therefore, the motion is granted.</p> <p>The CMC is vacated and the Court sets an OSC re: Mediation for 10/30/2026.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 6. | <b>SHEEHAN VS. SHEEHAN<br/>2024-01414691</b> | <p><b>1. MOTION FOR ATTORNEY FEES</b></p> <p>Plaintiff Colleen Sheehan’s Motion for Attorney’s Fees is DENIED.</p> <p>First, Plaintiff’s request for attorney’s fees for her corporation are improper. Plaintiff cannot request fees for another party and a corporation’s attorney is not the personal representative of the corporation’s shareholders. (See <i>Sprengel v. Zbylut</i> (2019) 40 Cal.App.5th 1028, 1042.) Thus, Plaintiff’s request for Next Generation Classic, Inc.’s attorney’s fees is denied.</p> <p>Second, Plaintiff has failed to present sufficient evidence to support her claim for attorney’s fees. “Reasonableness of the fee is determined by looking to a variety of factors: the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorney's efforts, his learning, his age, and his experience in the particular type of work demanded; the intricacies and importance of the litigation, the labor and the necessity for skilled legal training and ability in trying the cause, and the time consumed. (<i>Martino v. Denevi</i> (1986) 182 Cal.App.3d 553, 558 (cleaned up).) The party seeking to recover fees for prior counsel’s work on a case has the burden of producing evidence to prove the fees are reasonable. (<i>Ajaxo Inc. v. E*Trade Group Inc.</i> (2005) 135 Cal.App.4th 21, 65.)</p> <p>Plaintiff submitted only her declaration attesting to the amount of fees incurred from her former counsel. However, the declaration does not provide any information with which the Court could determine whether the costs were reasonable. Thus, Plaintiff’s request for her prior counsel’s fees is denied.</p> <p>Finally, Plaintiff seeks costs in her Motion. “A prevailing party who claims costs must serve and file a memorandum of costs within 15</p> |



days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules of Court, rule 3.1700, subd. (a).)

Thus, Plaintiff’s requests for costs are improperly included in this Motion. Therefore, Plaintiff’s request for costs is denied.

## **2. MOTION FOR RECONSIDERATION**

Plaintiff Colleen Sheehan’s Motion for Reconsideration is DENIED.

Plaintiff’s Motion is untimely under Code of Civil Procedure, section 1008(a). “When an application for an order has been made ... any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order ... make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Code Civ. Proc., § 1008(a).) The challenged interlocutory judgment was entered on 11/24/25. Thus, Plaintiff had until 12/4/25 to file her Motion. She filed this Motion on 12/12/25, beyond the 10 day time limit. Section 1008 is jurisdictional and its requirements apply to all applications. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 840.) Thus, the Court lacks jurisdiction to consider the Motion because it is untimely under Section 1008(a).

## **3. MOTION FOR CONTEMPT**

Defendant/Cross-Complainant Michael Sheehan’s Motion for Order to Show Cause re: Contempt against Plaintiff/Cross-Defendant Colleen Sheehan is GRANTED.

Defendant Michael request the Court issue and order to show cause “why Plaintiff and Cross-Defendant Colleen Sheehan (“Plaintiff”) should not be held in contempt for violating the Final Judgement entered by this Court on December 3, 2025, following the completion of trial.” Michael claims Plaintiff has no possessory rights in 2247 Meyer Place, Costa Mesa, CA 92627 or the Ferraris Online YouTube channel, however, has continued to exercise control over the property.

Disobedience of any lawful judgment, order or process of the court constitutes contempt of the authority of the court. (Code Civ. Proc., § 1209(a)(5).) “When the contempt is not committed in the immediate view and presence of the court or judge, a warrant of attachment may be issued to bring the person charged to answer, or, without a previous arrest, a warrant of commitment may, upon notice, or upon an order to show cause, be granted; and no warrant

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|    |                                              | <p>of commitment can be issued without such previous attachment to answer, or such notice or order to show cause.” (Code Civ. Proc., § 1212.) The substantive issues involved in a contempt proceeding are: (1) rendition of a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful disobedience. (<i>Wanke, Industrial, Commercial, Residential, Inc. v. Keck</i> (2012) 209 Cal.App.4th 1151, 1168.)</p> <p>The Court finds Michael has presented sufficient evidence that Plaintiff knows of the valid final judgment of this Court, her ability to comply with the judgment finding her to have no interest, possessory or otherwise in 2247 Meyer Place, Costa Mesa, CA 92627 or the Ferraris Online YouTube channel, and has willfully failed to comply with the order. (Leventhal Decl., ¶ 3-8.)</p> <p>The Court sets an Order to Show Cause why Colleen Sheehan should not be held in contempt on the ground she disobeyed this Court’s final judgment issued on December 3, 2025 for 8/4/26 at 9:00 a.m., in Dept.C32.</p> <p>Michael is ordered to personally serve the supporting declaration and the Order to Show Cause on Plaintiff. (<i>Cedars-Sinai Imaging Medical Group v. Superior Court</i> (2000) 83 Cal.App.4th 1281, 1286.) The proof of service must be filed at least 9 court days before the hearing.</p>                                                                                                              |
| 7. | <b>SALDIVAR VS. NGUYEN<br/>2022-01257448</b> | <p><b>MOTION FOR RECONSIDERATION</b></p> <p>Cross-Complainant Alphonse Nguyen’s Motion for Reconsideration of the Court’s May 5, 2026 Order is DENIED.</p> <p>“When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008(a).)</p> <p>Nguyen has failed to identify any new or different fact, circumstance, or law which merits reconsideration of the prior order. Nguyen first claims the Court’s decision to not allow oral argument warrants reconsideration. However, Nguyen fails to provide any authority which supports his contention this constitutes a new or different fact. Nguyen claims there are legal errors in the Court’s ruling, however, this would amount to rearguing the merits of the motions and not presenting new or different facts, circumstances, or</p> |

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|    |                                                                       | <p>law unavailable at the time of making the motions. Nguyen’s claims the Court failed to apply the liberal policy in favor of allowing amendment, the Court failed to apply the ADA to Nguyen’s motions, the ruling failed to properly identify prejudice, and considered the merits of the pleadings are similarly attempts to reargue the merits of the motions and are not new or different facts.</p> <p>Additionally, Nguyen’s declaration in support of this Motion fails to state “what application was made before, when and to what judge, what order or decisions were made ....” (Code Civ. Proc., § 1008(a).) Thus, the Motion is procedurally defective.</p> <p>Accordingly, Nguyen’s Motion is denied.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 8. | <b>MAKA VS. AMERICAN HONDA MOTOR CO. INC.</b><br><b>2023-01325822</b> | <p><b>MOTION FOR ATTORNEY FEES</b></p> <p>Plaintiffs Lueleni Fetongi Maka and Mailah Miranda Solia’s Motion for Attorney Fees is GRANTED in the reduced amount of \$27,032.</p> <p>This Song-Beverly Act case, filed on 5/17/23, arises from Plaintiffs’ purchase of a 2018 Honda Pilot on 4/9/21. Notice of Settlement was filed 7/8/24.</p> <p>Defendant’s objections are SUSTAINED as to Nos. 39-49. The remaining objections are OVERRULED.</p> <p><u>Legal Standard</u></p> <p>If a plaintiff prevails in a Song-Beverly action, they “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)</p> <p>Courts use the lodestar adjustment method to determine the amount of attorney’s fees to award in Song-Beverly actions. (<i>Reynolds v. Ford Motor Co.</i> (2020) 47 Cal.App.5th 1105, 1112.) The lodestar figure is “based on the careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.” (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131-1132 (<i>Ketchum</i>).) That figure may be increased or decreased by a “multiplier” based on factors, including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (<i>Id.</i> at p. 1132; <i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 247.)</p> <p>In challenging an attorney fees request, the burden falls upon the challenging party to point to specific items challenged, with</p> |

arguments and citation to evidence. General claims that fees are excessive are insufficient. (*Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association* (2008) 163 Cal.App.4th 550, 564.) A party cannot litigate tenaciously and then complain about the time incurred. (*Peak-Las Positas Partners v. Bollag* (2009) 172 Cal.App.4th 101, 114.)

Application:

Plaintiffs seek \$33,211.25 in attorney fees, consisting of \$23,369.00 in attorneys' fees, a 1.25 multiplier (i.e., \$5,842.25), and additional \$4,000 to review Defendant's opposition to the instant motion, draft the reply and attend the hearing on this motion.

The request is based on 65 hours of work, with counsel's rates between \$350-550/hour.

Defendant contends Plaintiffs' fee request is excessive because this case required limited workup, no depositions or vehicle inspection yet Plaintiffs' counsel overstaffed the case with six attorneys without billing any paralegal or administrative rates.

While the use of six attorneys in this case may suggest overstaffing, the Court has carefully reviewed the billing records and does not find the entries by the six different attorneys to have been duplicative. The Court further finds that about 85% of the total time was billed by just two attorneys: Donald Mahnke (2023 rate of \$350/hour and 2024 rate of \$400/hour) and David Derderian (2024 rate of \$350/hour). Thus, the Court finds the case was not overstaffed.

Defendant includes a table in its supporting declaration, which it contends sets forth its specific objections, requested reductions, and proposed reasonable rates and times that it contends are reasonable. The objections in the table include "Excessive," "Unnecessary," "Administrative," "Duplicative," and "Compound." However, the table does not include any reasoning for these objections. Nor does Defendant cite to, refer to, or argue the basis for these objections in its opposition.

Defendant's opposition specifically attacks only four entries. First, Defendant attacks an entry for 2.1 hours on 8/18/23 arguing it is excessive because it was for review of Defendant's routine document production that is regularly produced in Song-Beverly cases. The billing indicates the attorney reviewed 1,368 documents. The Court finds 2.1 hours to review 1,368 documents is reasonable.

Next, Defendant attacks an entry for 0.7 hours on 1/8/24 as vague, excessive and unnecessary contending it was a simple case review. Plaintiffs explain this entry was reasonable and necessary because the previous handling attorney was reassigned and the new handling attorney needed to get up to speed on the case. The Court recognizes

that staffing changes may become necessary during the course of litigation. Given the case review was limited to less than an hour, the Court finds the entry is reasonable.

Next, Defendant challenges an entry of 0.9 hours on 6/10/24 to review Defendant's 2-page 998 Offer and prepare a recommendation to their client arguing the entry is compound. Defendant does not explain what it means by "compound". Nevertheless, given the importance of a 998 offer to compromise, less than an hour to review it and prepare a recommendation is reasonable.

Lastly, Defendant challenges 6.2 hours to prepare the instant motion billed over three entries on 1/12/26 and 1/13/26 arguing it is excessive since the motion is virtually identical to hundreds of prior fee motions prepared in past cases by this firm. Defendant asserts preparation of the motion was billed by a senior partner and an associate. However, the billing shows only one associate billed for the motion. Additionally, Defendant failed to establish this motion is identical to prior motions filed by this firm, for example, by attaching a few such identical motions to the opposition. Even if counsel used templates to prepare the motion and supporting documents, counsel still needed to spend time editing the templates to add the facts and arguments applicable to this case. It is reasonable for an associate to spend 6.2 hours at a rate of \$395.00/hour to do so. "The fees incurred in preparing a motion for fees are properly includable in the award." (*McKenzie v. Ford Motor Co.* (2015) 238 Cal.App.4th 695, 703; *Ketchum, supra*, 24 Cal.4th at 1133 ["an attorney fee award should ordinarily include compensation for *all* the hours *reasonably spent*, including those relating solely to the fee"].)

In their reply, Plaintiffs slightly reduced the amount they seek for reviewing Defendant's opposition and drafting the reply to \$2,673 (5.4 hours at \$495/hour) and anticipate incurring additional fees of \$990 (2 hours at \$495/hour) to prepare for and attend the hearing. This totals \$3,663. Defendant did not challenge these tasks.

Given the relative simplicity of this matter, the Court finds that 65 hours of attorney work was reasonable to review records, prepare the complaint, prepare and respond to discovery, review and respond to settlement offer, and prepare the instant motion is reasonable. The Court also finds 7.4 hours reviewing Defendant's opposition, drafting the reply, and appearing at the hearing is reasonable.

The Court further finds \$350-550 are reasonable hourly rates for counsel, given the nature of the work in this lawsuit and the evidence presented by Defendant, including the *Laffey* Matrix and minute orders from courts in Orange County and Los Angeles County approving Defendants rates. (See *Tukes v. Richard* (2022) 81 Cal.App.5th 1, 17 18 [holding it is within the courts discretion to accept *Laffey* Matrix as evidence to help determine reasonable

|    |                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
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|    |                                                           | <p>rates]; see also <i>Margolin v. Regional Planning Com.</i> (1982) 134 Cal.App.3d 999, 1005 [evidence of fees awarded to counsel in other litigation is admissible and relevant, particularly in determining reasonable value of services rendered by public interest law firm that did not bill its clients].)</p> <p>Plaintiffs seek a multiplier of 1.25 (i.e., \$5,842.25). This simple lemon law case did not involve novel or complex issues nor did it require a high level of lawyering. Counsel has not established that this case prevented them from taking other work. Therefore, a multiplier is not warranted.</p> <p>The motion is granted. The Court awards \$27,032 in fees.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 9. | <b>TRAN VS. HN INJURY LAWYERS</b><br><b>2025-01485434</b> | <p><b>DEMURRER TO AMENDED COMPLAINT</b></p> <p>Defendants Hess &amp; Nghiem, APC; Edward W. Hess, Jr.; and Phillip B. Nghiem’s Demurrer to the First Amended Complaint (“FAC”) is SUSTAINED with 20 days leave to amend.</p> <p>Defendants demur to the FAC and each cause of action on the grounds that they are barred by res judicata and the applicable statute of limitations. Defendants also contend the new allegations of misconduct in the FAC should be disregarded as sham pleading.</p> <p>Defendants’ request for judicial notice (ROA 40) is GRANTED.</p> <p>On 9/20/24, plaintiff Trung N. Tran filed a small claims action against Defendants (sued as “HN Injury Lawyers”) in Orange County Superior Court, case no. 30-2024-01426477 (“Small Claims Action”). (Request for Judicial Notice (“RJN”), Ex. 4.) In the smalls claims Complaint, Plaintiff alleged Defendant owed him \$5,000 because on 11/8/23, he approved the settlement of \$75,000 with the condition that he at least receive 30% of the settlement, but he only received \$17,500. (RJN, Ex. 4.) After trial, judgment was entered on 3/26/25, in Defendants favor finding that Defendants did not owe any money on Plaintiff’s claim. (RJN, Exs. 1-2.) The court concluded that “[t]he retainer agreement comports with California law governing contingent fee agreements. Plaintiff failed to meet his burden that he was misled.” (RJN, Ex. 2.)</p> <p>On 5/27/25, Plaintiff, in pro per, commenced this action against “HN Injury Lawyers”. The original Complaint, as supplemented by an accompanying filing titled “DECLARATION”, alleged breach of Attorney-Client Agreement, executed on 10/4/19, and fraud. (ROA 1, 6, ¶ 1, Ex. A.) Plaintiff alleged that because the underlying matter settled before any litigation commenced, he was entitled to a contingent fee of 33 1/3% under the agreement. (ROA 1, 6, ¶¶ 2-3, Ex. A.) Nevertheless, Defendants applied a 40% fee and imposed an extra legal fee of \$4,194 in breach of the agreement. (ROA 1, 6, ¶¶ 3-4, Ex. B.)</p> |

Defendants demurred to the original Complaint on res judicata grounds. (ROA 12.) In response, on 11/24/25, Plaintiff filed the FAC alleging six causes of action for (1) Legal Malpractice; (2) Breach of Fiduciary Duty; (3) Breach of Contract; (4) Constructive Fraud; (5) Unjust Enrichment; (6) Intentional Infliction of Emotional Distress. (ROA 24.)

In the FAC, Plaintiff alleges that on 9/16/20, he filed a motor vehicle personal injury action in San Bernardino County Superior Court, and retained defendant Hess & Nghiem, APC (“H&N”) to represent him pursuant to a written agreement. (FAC, ¶¶ 8-9.) Throughout the litigation, Plaintiff repeatedly instructed Defendants to reject premature settlement offers, which increased from \$25,000 to \$55,000 and later to \$70,000, and proceed to jury trial. (FAC, ¶¶ 9, 12-17.) However, Defendants unilaterally filed a Notice of Settlement of the Entire Action on 10/4/23, and dismissed the action on 10/16/23, without his informed consent or authorization. (FAC, ¶ 9.) Defendants failed to conduct adequate discovery and trial preparation, preserve critical evidence and expert testimony, honor Plaintiff’s express instructions to proceed to jury trial, disclose material facts regarding settlement negotiations, and protect Plaintiff’s interests in maximizing recovery for permanent injuries. (FAC, ¶ 10.) Defendants misrepresented the status of the case, pressured him to accept settlement, and fraudulently induced him to sign the release, depriving him of his right to trial and full recovery. (FAC, ¶ 20; see also ¶¶ 18-19, 22-25.)

#### Sham Pleading

Defendants argue the FAC should be disregarded as a sham pleading because Plaintiff filed the FAC to avoid the res judicata effect of the small claims judgment.

“Under the sham pleading doctrine, ‘[i]f a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations.’ [Citation omitted.] Where no explanation for an inconsistency is offered, the trial court is entitled to conclude that the pleading party’s cause of action is a sham and sustain a demurrer without leave to amend. [Citation omitted.]” (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 447; see also *Vallejo Development Co. v. Beck Development Co.* (1994) 24 Cal.App.4th 929, 946 [“a court is ‘not bound to accept as true allegations contrary to factual allegations in former pleading in the same case.’ ”].)

Both the complaint in the Small Claims Action and the original Complaint in this action concern a fee dispute pursuant to a retainer agreement. After Defendants filed a demurrer on res judicata grounds, Plaintiff filed the FAC adding professional misconduct

allegations to the fee dispute allegations. However, the FAC does not omit facts since the fee dispute allegations are included in the FAC's breach of contract cause of action. (See FAC, ¶¶ 48, 50.) Nor have Defendants identified any new facts alleged in the FAC that are inconsistent with the prior pleading *in this action*. (See *Vallejo Development Co.*, *supra*, 24 Cal.App.4th at p. 946.) Thus, the sham pleading doctrine does not apply.

#### Res Judicata

The doctrine of res judicata has two aspects—claim preclusion and issue preclusion. (*DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 824.) “Claim preclusion arises if a second lawsuit involves: (1) the same cause of action, (2) between the same parties, (3) after a final judgment on the merits in the first suit. If claim preclusion is established, it bars relitigation of the claim. [¶] Issue preclusion prohibits the relitigation of issues argued and decided in a previous case, even if the second suit raises different causes of action. Under issue preclusion, the prior judgment conclusively resolves an issue actually litigated and determined in the first action. There is a limit to the reach of issue preclusion, however. In accordance with due process, it can be asserted only against a party to the first lawsuit, or one in privity with a party.” (*Ibid.* [cleaned up].) Similarly, “claim preclusion applies only to the relitigation of the same cause of action *between the same parties* or those in privity with them.” (*Id.* at p. 825 [emphasis in original].)

Small claims judgments are claim preclusive. (*Pitzen v. Superior Court* (2004) 120 Cal.App.4th 1374, 1381.) However, they are not issue preclusive. (*Sanders v. Walsh* (2013) 219 Cal.App.4th 855, 871; accord *Sanderson v. Niemann* (1941) 17 Cal.2d 563.)

“To determine whether two proceedings involve identical causes of action for purposes of claim preclusion, California courts have consistently applied the ‘primary rights theory.’” (*Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 797 [cleaned up].) Under the primary rights theory, “[t]he ‘cause of action’ is based upon the harm suffered, as opposed to the particular theory asserted by the litigant. Even where there are multiple legal theories upon which recovery might be predicated, one injury gives rise to only one claim for relief. Hence a judgment for the defendant is a bar to a subsequent action by the plaintiff based on the same injury to the same right, even though he presents a different legal ground for relief. Thus, under the primary rights theory, the determinative factor is the harm suffered. When two actions involving the same parties seek compensation for the same harm, they generally involve the same primary right.” (*Id.* at p. 798 [cleaned up; emphasis in original].)

Here, it cannot be determined at the pleading stage whether claim preclusion applies because it is unclear whether the Small Claims



Action and the instant action concern the same retainer agreement. The retainer agreement at issue in this action is attached to the original Complaint and the FAC. However, the retainer agreement at issue in the Small Claims Action is not one of the documents submitted for judicial notice. Defendants conclude, without support, that the agreement attached to the original Complaint and FAC is “indisputably, the same agreement as alleged in the Small Claims action.” (Dem., p. 9:14-16.) Similarly, it is unclear if the two actions involved the same parties or those in privity with the same parties. In both actions, Plaintiff sued HN Injury Lawyers. However, Plaintiff amended the Complaint to name Defendants, omitting HN Injury Lawyers. The pleadings and the judicially noticed documents do not establish Defendants are in privity with HN Injury Lawyers.

Therefore, the demurrer is overruled on this ground.

### Statute of Limitations

Defendants contend this legal malpractice action is barred by the one-year statute of limitations under Code of Civil Procedure section 340.6, subdivision (a). Plaintiff contends he has alleged actual fraud which is governed by the three-year statute of limitations under Code of Civil Procedure, section 338, subdivision (d).

“To determine the statute of limitations which applies to a cause of action it is necessary to identify the nature of the cause of action, i.e., the ‘gravamen’ of the cause of action. [Citations.] [T]he nature of the right sued upon and not the form of action nor the relief demanded determines the applicability of the statute of limitations under our code.” (*Gutierrez v. Tostado* (2025) 18 Cal.5th 222, 231 [cleaned up].)

Code of Civil Procedure section 340.6, subdivision (a), provides:

An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first.

Section 340.6, subdivision (a), “applies to claims whose merits necessarily depend on proof that an attorney violated a professional obligation in the course of providing professional services. In this context, a ‘professional obligation’ is an obligation that an attorney has by virtue of being an attorney, such as fiduciary obligations, the obligation to perform competently, the obligation to perform the services contemplated in a legal services contract into which an attorney has entered, and the obligations embodied in the Rules of Professional Conduct.” (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1236–1237.)

Here, the FAC’s six causes of action for legal malpractice, breach of fiduciary duty, breach of contract, constructive fraud, unjust enrichment, and intentional infliction of emotional distress “depend on proof that an attorney violated a professional obligation in the course of providing professional services. (*Lee, supra*, 61 Cal.4th at pp. 1236–1237.)

The gravamen of the FAC’s six causes of action is that Defendants’ breached their professional obligations to Plaintiff — the duty perform professional services competently and to give timely, competent and truthful professional advice about the status of his legal action and his options as a result thereof, including settlement. These causes of action therefore “depend on proof that an attorney violated a professional obligation in the course of providing professional services. (*Lee, supra*, 61 Cal.4th at pp. 1236–1237.) Accordingly, they are governed by section 340.6, subdivision (a). This conclusion extends to the fourth cause of action for constructive fraud because the “actual fraud” exception to section 340.6, subdivision (a), “does not extend to claims of constructive fraud.” (*Austin v. Medicis* (2018) 21 Cal.App.5th 577, 587; Code Civ. Proc., § 340.6, subd. (a).)

Contrary to Plaintiff’s contention, the FAC does not allege actual fraud. Plaintiff’s bare allegations that Defendants falsely stated trial was “years away”, the settlement had already been approved, and the case was already dismissed (FAC ¶¶ 18, 19, 22) does not state a cause of action for fraud or transform this entire action into one for fraud.

Regarding accrual, the FAC alleges: “Throughout the litigation Plaintiff repeatedly instructed Defendants to reject premature settlement offers and proceed to jury trial.” (FAC, ¶ 9.) Plaintiff was initially offered a settlement of \$25,000, which he rejected . . .” (FAC, ¶ 12.) “[T]he settlement offer increased to \$55,000. Plaintiff again refused, stating his minimum acceptable settlement was \$250,000.” (FAC ¶ 16.) “The offer was later raised to \$70,000, but Plaintiff continued to reject settlement and instructed Defendants to proceed to jury trial.” (FAC, ¶ 17.) “Around September 24, 2023—near Plaintiff’s birthday—Defendants called Plaintiff and falsely stated that the settlement had already been approved and that the Dismissal of Entire Action had already been submitted to the San Bernardino Superior Court.” (FAC, ¶ 18.) Given Plaintiff’s express instructions to reject the settlement offers and proceed to trial, Plaintiff knew as early as 9/24/23, that Defendants had violated his express instructions. However, Plaintiff did not commence this action until 5/27/25, more than 19 months later. Thus, this action is time-barred.

Plaintiff contends the delayed discovery rule applies because he did not discover the fraud until 11/4/24, when he accessed the court docket via Trellis and discovered the trial had actually been

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|     |                                                                                  | <p>scheduled for just months later rather than years away, proving Defendants' statements were categorically false. (See FAC ¶ 23.) The docket is attached to the FAC and is dated 11/4/24. (FAC, ¶ 24, Ex. B.)</p> <p>Plaintiff's argument lacks merit. Plaintiff's discovery of wrongdoing on 9/24/23 triggered the one-year limitations period to diligently investigate and bring suit. The court's docket was available online. Plaintiff could have accessed it any time after realizing Defendants did not follow his instructions. He failed to do so until 11/4/24.</p> <p>The demurrer is sustained with 20 days leave to amend.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 13. | <b>LAW OFFICES OF MARK B. PLUMMER, PC VS. NETWORKSOLUTIONS.COM 2020-01141868</b> | <p><b>1. DEMURRER TO AMENDED COMPLAINT</b></p> <p>Defendant Nili Alai, M.D.'s Demurrer to Plaintiffs' First Amended Complaint is OVERRULED.</p> <p>Alai's request for judicial notice (ROA 606) of filings in various court proceedings is granted.</p> <p>Defendant demurs to the first cause of action for defamation and the fourth cause of action for declaratory relief.<br/>The First Amended Complaint (FAC) was filed on 1/25/21.</p> <p>Alai filed a motion to deem Plaintiff a vexatious litigant an anti-SLAPP motion to strike on 2/2/21, automatically staying the litigation. Alai's counsel filed a declaration under Code of Civil Procedure section 430.41 on 3/15/21 stating they intended to meet and confer regarding a demurrer.</p> <p>On 11/4/21, the Court ruled this action was stayed pending the appellate court's resolution of the appeal regarding Defendant's anti-SLAPP motion. A remittitur was issued on 12/9/22.</p> <p>Alai's vexatious litigant motion was denied on 2/9/23.</p> <p>On 4/27/23, the Court stayed the matter "pending resolution of" another anti-SLAPP appeal. On 8/15/24, the remittitur in the second appeal was issued. In summary, the case was stayed between approximately February 2021 and August 2024.</p> <p>Defendant filed an Answer to the FAC on 12/6/24.</p> <p>The Demurrer was filed on 12/4/25.</p> <p>In opposition, Plaintiffs contend Alai improperly filed the demurrer after filing her answer, which is incorrect as stated above.</p> <p>However, Plaintiffs also argue the subject demurrer had to be filed within 30 days of the remittitur issued on 8/15/24, which lifted the stay that had been in effect since 2/2/21. Alai does not respond to</p> |

this argument in reply, apparently conceding the demurrer is untimely. Therefore, the demurrer is overruled as untimely because it was not filed until more than 30 days after the stay was lifted following filing of the FAC.

## **2. DEMURRER TO AMENDED CROSS-COMPLAINT**

The Demurrer of Cross-Defendants Law Offices of Mark B. Plummer, P.C. and Mark B. Plummer (Movants) to the First Amended Cross-Complaint of Nili Alai and 12712 LLC (FACC) is OVERRULED.

Code of Civil Procedure section 430.40(a) states, “A person against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint.”

Code of Civil Procedure section 430.41(a) provides, “(a) Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading.

(1) As part of the meet and confer process, the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. The party who filed the complaint, cross-complaint, or answer shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the complaint, cross-complaint, or answer could be amended to cure any legal insufficiency.

(2) The parties shall meet and confer at least 5 days before the date the responsive pleading is due. If the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. The 30-day extension shall commence from the date the responsive pleading was previously due, and the demurring party shall not be subject to default during the period of the extension. Any further extensions shall be obtained by court order upon a showing of good cause.”

Here, the FACC was filed on 7/2/25.

On 8/4/25, Movants filed a declaration in support of automatic extension which stated they did not meet and confer because, “There was an improper Amended Cross-Complaint filed without leave to amend. [¶] There is a motion to dismiss pending for violation of Rule of Court 3.110 – If the Defendant is given Leave of Court – there will be a Demurrer.”

Movants’ demurrer was not filed until 9/3/25, approximately 60 days after the FACC was filed.

Section 430.41(a) provides for a 30-day extension of time to file a demurrer under specific circumstances – when the demurring party makes “a good faith attempt to meet and confer” but the parties “could not meet and confer” for specified reasons.

Here, Movants’ declaration in support of the request for automatic extension does not describe any good faith attempt to meet and confer or explain why the parties were unable to do so. Rather, it states the reasons why Movants neglected or decided not to meet and confer – they strategically chose to file a motion to dismiss instead of promptly preparing a demurrer. The Court denied that motion to dismiss on 2/24/26. Counsel’s decision to prepare a motion to dismiss rather than to meet and confer and/or file a timely demurrer is not grounds for an automatic extension under section 430.41. Therefore, the demurrer is overruled as untimely.

### **3. MOTION TO QUASH SUBPOENA**

Defendant Nili Alai, M.D.’s (Alai) Motion to Quash Deposition Subpoena to Barbara Shang, M.D. is DENIED.

The subject subpoena dated 10/14/25 seeks information identifying the owner/operator of [www.barbarashangmd.com](http://www.barbarashangmd.com).

Alai contends the subpoena is not reasonably calculated to lead to relevant evidence. Alai states Plaintiffs have offered no explanation for the subpoena to third party Dr. Shang.

In opposition, Plaintiffs state they believe the subject website was created by Alai in order to make false statements of fact about Dr. Shang. Plaintiffs contend this demonstrates a pattern and practice of Alai setting up websites to defame people she dislikes.

Evidence Code section 1101 states,

“(a) Except as provided in this section and in Sections 1102, 1103, 1108, and 1109, evidence of a person's character or a trait of his or her character (whether in the form of an opinion, evidence of reputation, or evidence of specific instances of his or her conduct) is inadmissible when offered to prove his or her conduct on a specified occasion.

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|  |  | <p>(b) Nothing in this section prohibits the admission of evidence that a person committed a crime, civil wrong, or other act when relevant to prove some fact (such as motive, opportunity, intent, preparation, plan, knowledge, identity, absence of mistake or accident, or whether a defendant in a prosecution for an unlawful sexual act or attempted unlawful sexual act did not reasonably and in good faith believe that the victim consented) other than his or her disposition to commit such an act.</p> <p>(c) Nothing in this section affects the admissibility of evidence offered to support or attack the credibility of a witness.”</p> <p>Here, Plaintiffs have shown the subpoena is reasonably calculated to lead to discovery of evidence regarding whether Alai has created other false websites, which may be admissible under section 1101(b) or (c). (Code Civ. Proc. § 2017.010.) Therefore, the motion is denied.</p> |
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